

Court No. - 21

Case :- WRIT - C No. - 6391 of 2024

Petitioner :- Ashwani

Respondent :- Dm Purvanchal Vidyut Vitran Nigam Ltd And 2 Others

Counsel for Petitioner :- Brijesh Kumar Kesharwani, Rajesh Kesharwani

Counsel for Respondent :- Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for respondent-Electricity Department seeks time to obtain instructions.

2. Put up as fresh on 06.03.2024.

Order Date :- 27.2.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. The recovery notice dated 24.01.2024 issued by respondent no.2 for recovery of electricity dues from the petitioner is under challenge. The recovery is in respect of a commercial connection at the petitioner's premises.

2. Counsel for the petitioner submits that the petitioner is regularly paying the electricity bills and the impugned recovery notice is illegal.

3. Sri Sushil Kumar Pandey, learned counsel for the respondent-Electricity Department, submits that the dispute can be decided under Clause 6.5 of the Electricity Supply Code, 2005.

4. We are also of the opinion that the petitioner should avail said remedy in case he is disputing the correctness of the aforesaid bills.

5. Accordingly, without expressing any opinion on merits, the petition is **disposed of** with liberty to the petitioner to file objections before respondent no.2 within two weeks along with true attested copy of the instant order. In case any such objection is filed, the same shall be decided by respondent no.2 by speaking order within next four weeks and until the objections are decided, no coercive action shall be taken against the petitioner.

6. In case of default on the part of the petitioner in filing objections within the time stipulated above, it shall become open to the respondents to proceed further in the matter in accordance with law.

Order Date :- 6.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)